

PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR SEPTEMBER 4, 2026 AT 8:30 A.M.

22. S-CV-0056384 BANKS, CAMERON v. GENERAL MOTORS

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Plaintiffs' Motion for Attorneys' Fees, Costs, and Expenses

The motion is granted. In the current request, plaintiffs seek \$16,527.50 in attorneys' fees, a multiplier of 0.5 for an additional \$8,263.75, and \$2,157.75 in costs pursuant to Civil Code section 1794(d). The buyer who prevails under the Song-Beverly Act - colloquially referred to as a "lemon law" case - is statutorily entitled to attorney's fees and costs. (Civil Code section 1794(d); *Pulliam v HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 405-406.) The prevailing party has the burden of showing the requested fees and costs were reasonably incurred, reasonably necessary, and reasonable in amount. (*Ibid.*) The reasonableness of any attorney's fees award begins with the lodestar calculation, i.e. the actual time spent and the reasonable hourly compensation for the attorney. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135; *Pulliam, id.* at p. 406.)

The court has carefully considered the number of hours expended by counsel along with the hourly rates for comparable work within Placer County and awards \$12,422.50 broken down as follows:

NAME	RATE	HOURS	TOTAL
Sepehr Daghighian	\$425/hr	12.1	\$ 5,142.50
Michael Rosenstein	\$425/hr	2.2	\$ 935.00
Miguel Ortiz	\$375/hr	1.8	\$ 675.00
Jim Martinez	\$350/hr	16.2	\$ 5,670.00
TOTAL		32.3	\$12,422.50

The court has carefully considered the issues presented in the case; the nature and extent the litigation precluded other employment for counsel; and the contingent nature of any fee award and declines to apply either a positive or negative multiplier. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.)

The court has carefully considered the costs and finds them to be reasonable.

In sum, the motion is granted. Plaintiff is awarded \$12,422.50 in attorneys' fees and \$2,157.75 in costs.